

**THE CORPORATION OF THE TOWN OF
NORTHEASTERN MANITOULIN AND THE ISLANDS**

BY-LAW No. 2005-08

Amended June 16th, 2015

Amended July 21st, 2020

**Being a By-Law to permit the operation of
Off Road Vehicles on highways under the jurisdiction
of the Town of Northeastern Manitoulin and the Islands**

WHEREAS the Highway Traffic Act, R.S.O. 1990, Chap. H8, Section 191.8, subsection (3), as amended, authorizes the Council of a municipality to pass by-laws permitting the operation of off-road vehicles on any highway within the municipality that is under the jurisdiction of the municipality, or on any part or parts of such highway;

AND WHEREAS the Council of the Corporation of the Town of Northeastern Manitoulin and the Islands deems it advisable to regulate the operation of All-Terrain Vehicles, being a class of Off-Road Vehicles, as defined in Section 1 of Ontario Regulation 316/03, on highways within the jurisdiction of the municipality, or on any part or parts of such highways;

NOW THEREFORE the Council of the Corporation of the Town of Northeastern Manitoulin and the Islands enacts the following:

1. In this By-Law:

“Multi-purpose off-highway utility vehicle” means an off-road vehicle that,

- i) has four wheels, the tires all of which are in contact with the ground,
- ii) has steering handlebars,
- iii) has a seat that is not designed to be straddled by the driver,
- iv) has a minimum cargo capacity of 159 kilograms

“Recreational off-highway vehicle” means an off-road vehicle that,

- i) has four or more wheels, the tires of which are all in contact with the ground,
- ii) has a steering wheel for steering control,
- iii) has seats that are not designed to be straddled and
- iv) has an engine displacement equal to or less than 1000 cubic centimeters

“Seat belt assembly” means a device or assembly composed of a strap or straps, webbing or similar material that restrains the movement of a person in order to prevent or mitigate injury to the person.

“All-terrain vehicle” means an off road vehicle that,

- i) has four wheels, the tires of all of which are in contact with the ground
- ii) has steering handlebars,
- iii) has a seat that is designed to be straddled by the driver and
- iv) is designed to carry a driver only and no passengers or a driver and only one passenger and if the vehicle,
 - a. has one passenger seat that is designed to be straddled by the passenger while sitting facing forward behind the driver and
 - b. is equipped with a foot rests for the passenger that are separate from the foot rest for the driver,

a) “Highway” means a common and public highway, street, road, avenue, laneway or bridge and includes unopened road allowances.

b) “Off-Road Vehicle” means an off-road vehicle within the meaning of the Off-Road Vehicles Act, Reg. 316/03, s.1.

2. All-Terrain Vehicles, multipurpose off highway utility vehicles ~~and~~, recreational off-highway vehicles, off road vehicles including extreme terrain vehicles (argos) and off road motorcycles are permitted to be operated on the traveled portion of any highway that is under the jurisdiction of the Town.
3. An off-road vehicle shall not be operated on highways unless it meets the requirements of Sections 7 to 15 of Ontario Regulation 316/03 and it is operated in accordance with Sections 16 to 24 of Ontario Regulation 316/03, S. 6 and all other regulations under provincial
4. The All-Terrain Vehicle shall not be driven at a rate of speed greater than:
 - a) 20 kilometres per hour, if the speed limit established under the Highway Traffic Act or by Municipal By-Law for that part of the highway is not greater than 50 kilometres per hour; or
 - b) 50 kilometres per hour, if the speed limit established under the Highway Traffic Act or by Municipal By-Law for that part of the highway is greater than 50 kilometres per hour.
5. All applicable provisions of the Highway Traffic Act, R.S.O. 1990, as amended, and Ontario Regulation 316/03, as amended, shall apply to the operation of All-Terrain Vehicles on highways.
6. No person shall operate an All-Terrain Vehicle:
 - a) over any of the following restricted streets:
 - i) **Meredith Street** commencing at a point where Meredith Street intersects with Worthington Street and extending easterly to its intersection with Manitowaning Road,
 - ii) **Vankoughnet Street** commencing at a point where Vankoughnet Street intersects with Worthington Street and extending easterly to its intersection with Manitowaning Road,
 - iii) **Robinson Street** commencing at a point where Robinson Street intersects with Water Street and Worthington Street, and extending westerly to its intersection Red Mill Road,
 - iv) **Water Street** commencing at a point where Water Street intersects with Worthington Street and Robinson Street and extending easterly to its intersection with Manitowaning Road;
 - b) On any sidewalk or boulevard within the Town of Northeastern Manitoulin and the Islands;
7. Every person who contravenes any provisions of this By-law is guilty of an offence and, upon conviction, is liable to a fine or penalty provided for in the Provincial Offences Act.

Read a First, Second and Third time and finally passed this 15th day of February, 2005.

Read a First, Second and Third time and finally passed this 16th day of June, 2015, and coming into effect July 1, 2015.

Read a First, Second and Third time and finally passed this 21st day of July, 2020.

Al MacNevin Mayor

Pam Cress Clerk